TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 30, 2023
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Julian Hopkins.
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

▶ *Mr. Hopkins moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.*

B. Approval of Minutes

▶ *Mr. Butner moved for deferral of approval of the minutes. Mr. Branch seconded the motion. All in favor.*

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. Case V-01-23, 1405 Kinglet Street, TMS# 560-12-00-001. Request for relief from the strict application of §156.303(Table) to bring

an existing setback encroachment into compliance and allow an additional 2.2-foot encroachment into the 30-foot rear setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Linda Jones and Mr. Craig Jones, owners, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Butner moved for approval of the 208 foot existing encroachment based on the findings that it meets the four criteria as the home is set at an odd angle and was approved in the 1980s, other homes are squared on the lot, denial would mean the home would continue to be in non-compliance, and approval would not be a detriment to the neighborhood. Mr. Hopkins seconded the motion. All in favor.*

- *Ms. Stevens moved for approval of the 2.2 foot encroachment into the rear setback based on the findings that the home was built in 1980s, street traffic was not as intense, home is built diagonal on lot, no trees would be disturbed, and the owner wants to add to the porch to utilize it year-round, because the house is not squared on lot, denial would mean part of the home could not be utilized, and there is a privacy fence so there would not be a detriment to the neighborhood. Mr. Butner seconded the motion. All in favor with Mr. Wood abstaining.*

2. **Case V-02-2023, 5039 Barrier Island Court, TMS# 599-08-00-006. Request for relief from the strict application of §156.111(A)(1) to allow a 6-foot encroachment into the 6-foot accessory setback.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Taylor Fennell, architect, reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.
- Mr. Wood closed public comment.
- *Ms. Stevens moved for approval based on the findings that the pool was initially constructed within the setback, does not apply to other property as it was not built according to the submitted approved plans, the owner is trying to be compliant, denial of the request would mean that the pool could not be traversed safely and are bringing it more into compliance, and would not be a detriment as it is a small encroachment. Mr. Hopkins seconded the motion. All in favor.*

H. Approval of Final Order

The Board signed final orders.

I. Adoption of Rules of Procedure

- Mr. Swalhah reviewed the changes to the rules of procedure with the Board.
- *Mr. Hopkins moved for approval of the Rules of Procedure as presented. Mr. Butner seconded the motion. All in favor.*

J. Election of Officers

- The Board voted Mr. Wood as Chair and Ms. Stevens as Vice-chair.

There being no further business, the meeting adjourned at 7:03 pm.

Submitted by,
L. Lynes
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